

# Heutrix legal pack approval decisions

Version 2.2 review draft | Prepared 13 September 2026 | No effective issue date assigned

This is the single decision worksheet for the v2.2 review pack. It gives the owner, Australian legal adviser and affected operating users the information needed to release a specific version. Preparing the documents does not record approval. Complete this worksheet in a restricted business workspace, keeping sensitive evidence outside Git; update the legal review register with non-sensitive approval references only.

## Current readiness

The website privacy policy and terms were owner approved on 12 September and published on 13 September 2026. The owner waived independent review for that website launch. The waiver does not extend to client contracts. Shashane handles website enquiries with Rochelle as backup. The Formspreet and business email enquiry pathway is evidenced by website PR 16.

Entity name, ABN and ACN are verified in the 8 September registration record: Heutrix Pty Ltd, ABN 64 702 109 662, ACN 702 109 662. That record states not currently registered for GST and main business location VIC 3978. Recheck changeable particulars at issue. VIC 3978 is not a full address. An ABN activation date is not an incorporation certificate, and merge coordination is not contract-signing authority.

Owner-supplied business and notices address: 4 Ellaroo Ct, Clyde North VIC 3978, Australia. Authorised signatories: Janith Dharmasinghe and Sachin Wickramasuriya, Directors. Source: the owner-updated onboarding row in 00-control/DECISIONS.md, confirmed for use on 13 September 2026. These particulars are owner supplied, not a fresh ASIC verification. The owner confirms insurance and commercial decisions remain **pending**. Formal contractual notice email, execution method, client-system/data approvals and client-pack legal review remain unresolved. Client issue and paid onboarding remain on hold; these files remain preparation and review material.

## Decisions and evidence required

### G1 Contracting identity and authority

Resolved by owner: Business/trading and contracting name Heutrix Pty Ltd; business and notices address 4 Ellaroo Ct, Clyde North VIC 3978, Australia; authorised signatories Janith Dharmasinghe and Sachin Wickramasuriya, Directors. Use this owner decision for the review masters. No separate Heutrix Labs business-name registration or ASIC extract is inferred.

Still required: Formal notice email, method of execution and the signatory/signatories for each final document; any expanded public-brand relationship; client particulars for each issue.

Known: Verified entity/ABN/ACN and dated GST non-registration. hello@heutrix.com.au is the approved website enquiry/privacy contact; its use for formal contractual notices still requires confirmation. The owner-provided address and signing authority are recorded above. An ASIC incorporation date/certificate has not been supplied.

Record: Owner values and source: onboarding decision row in 00-control/DECISIONS.md, confirmed for use in this task on 13 September 2026. Record the remaining email/execution decisions, final document signatory selection and issue approval **[Placeholder]** (COMPLETE). Recheck before first signature and after a particulars change.

## G2 Insurance and accepted service risk

Status: Owner confirmed **PENDING** on 13 September 2026. No policy, cover limit or risk acceptance is selected by this revision.

Decision requested: Broker/adviser confirmation of cover appropriate to the actual workflow consultancy, configuration/development, AI-governance work and data access. Record professional indemnity, public liability and cyber position as applicable, limits, exclusions, excesses, expiry, retroactive terms and subcontractor/offshore implications.

Proposal: Issue only factual insurance statements backed by current evidence. Align contractual liability/indemnity commitments with the reviewed insurance position. Do not rely on a client acknowledging an insurance gap to bypass Heutrix's existing onboarding gate.

Record: Restricted evidence reference **[Placeholder]** (COMPLETE); service/data scope covered **[Placeholder]** (COMPLETE); broker/adviser assessment **[Placeholder]** (COMPLETE); owner decision/date **[Placeholder]** (COMPLETE); renewal review date **[Placeholder]** (COMPLETE). A policy number or certificate is not to be copied into public material.

## G3 Commercial rules and payment operations

Status: Owner confirmed **PENDING** on 13 September 2026. Fee, margin, payment, cancellation and other commercial decisions remain unapproved.

Decision requested: Loaded costs, margin floor, fixed-fee approval and exception authority; approved milestones/advance payments; invoice due period; good-faith dispute process; lawful GST treatment; expenses and third-party costs; cancellation/refunds; pause, reschedule and restart; overdue-payment notice/cure; final handover rules; bank-verification and invoicing system.

Proposal: Fixed scope/price privately agreed, no automatic Diagnostics fee credit, no public price or starting range. Refund unperformed prepaid services subject to properly performed work and approved unavoidable commitments. Review proportionality and consumer rights rather than using a blanket non-refundable deposit. Do not charge GST or issue a tax invoice under the current non-registered position; verify any later change with Finance.

Legacy settings removed from automatic use: AUD 950 Diagnostics price; seven-calendar-day invoices; five-business-day invoice disputes and overdue cure; ten-business-day convenience/breach periods. They were draft terms, not owner decisions. Required final values appear as APPROVE fields in the revised masters. The owner's approved rules must replace them consistently before issue.

Record: Rule/version and restricted approval reference **[Placeholder]** (COMPLETE); Finance checker **[Placeholder]** (COMPLETE); owner/date **[Placeholder]** (COMPLETE); legal review of payment and termination wording **[Placeholder]** (COMPLETE). Per-project fees and milestones remain client-specific.

## G4 Scope capacity acceptance and support

Decision requested: Approve service limits and capacity before making commitments. For Diagnostics: workshop/interview effort, participants, documents/pages, report/maps, readout, correction rounds, acceptance period, dates and input dependencies. The legacy 90-minute/four-person/five-document/50-page/ten-day bundle is no longer an automatic inclusion.

Transformation position preserved: One bounded non-clinical workflow; Diagnose, Triage, Build, Handover; conditional typical 2-4 week window; the current baseline includes a 60-90-minute workshop, two focused review checkpoints, user testing, guidance, training and handover. Specify included systems/roles/integrations/refinement effort and feasibility. Retain 30-day qualifying in-scope defect correction, with the exact trigger and start/end dates approved. That period does not remove statutory rights.

AI Guardrails: Confirm included teams/tools/use cases, assessment depth, governance artefacts, scenarios, sponsor review and briefing effort. These working requirements do not become promises until scoped and approved. No fixed public timeline, guaranteed compliance, technical enforcement or continuous monitoring is implied.

Proposal for acceptance: Explicit written acceptance against objective criteria; missed review dates trigger reminder and escalation, not deemed acceptance. Agree reasonable correction/resubmission and separate production release authority. Review the proposed wording legally and operationally.

Record: Scope/capacity rules [Placeholder] (COMPLETE); Delivery/Sales review [Placeholder] (COMPLETE); owner/date [Placeholder] (COMPLETE); legal review [Placeholder] (COMPLETE). Each project records exact criteria, exclusions and dates in document 02 or 03.

## **G5 Systems privacy access and retention**

Decision requested: Approve exact email, contract signing, invoicing, client collaboration/storage, credential management, change-control and AI systems for specified data classes. Record administrator, MFA/access, vendor terms, hosting/support countries, subprocessors, backup/export/exit, retention/deletion and incident contacts. The general approved-systems register remains open; website approval covers its evidenced enquiry purpose only.

Proposal: No real project information or production access before a signed scope, form A, appropriate notice and approved handling plan. Use synthetic information first; assess re-identification risk for de-identified examples. Do not describe Google Workspace or Microsoft 365/SharePoint as approved platforms without exact approval. A project or AI checkbox never overrides data restrictions.

Retention decision: For enquiries, follow the already published purpose-based rule and assess all Formsfree/email copies. For project working data, contracts/finance records, deliverables, logs and backups, set separate purposes, applicable legal holds/recordkeeping duties, period or review trigger, deletion method, owner and evidence. Legacy 30-day working-copy and 90-day backup promises are removed until supported by actual systems and legal requirements.

Record: Systems approval references [Placeholder] (COMPLETE); data classification and legal applicability assessment [Placeholder] (COMPLETE); approved standard/SOP version [Placeholder] (COMPLETE); named privacy decision-maker and backup [Placeholder] (COMPLETE); incident lead and backup [Placeholder] (COMPLETE); owner/adviser/affected-user review [Placeholder] (COMPLETE). No blanket federal small-business exemption is assumed.

## **G6 Liability IP confidentiality and contract balance**

Decision requested: Australian solicitor review of the complete agreement, notices, execution, hierarchy, liability exclusions/caps, indemnities, warranties, assignment, dispute forum, suspension, termination and each scope. Confirm the intended insurance alignment and applicable Australian Consumer Law and unfair-contract-term protections.

Legacy settings requiring a fresh choice: General cap of greater of two times fees and AUD 10,000; higher confidentiality/privacy/security/IP cap of greater of four times fees and AUD 50,000; default client ownership on payment; fixed confidentiality and NDA periods; Victorian forum. These were draft proposals. In v2, caps, IP choice and periods are explicit decision fields; the Victorian governing-law draft remains for adviser confirmation. An unfilled cap must never be sent as a contract.

IP proposal: Select client-owned project-specific deliverables, a defined licence or another reviewed arrangement; expressly identify background materials, source/editable exports, third-party/open-source rights, maintenance, portability and exit. No unspecified IP option is treated as selected. Preserve a useful licence for embedded background materials when client ownership is chosen.

Balance review: No silent deemed acceptance, unilateral fee changes, unexplained withholding of all prepaid fees or removal of non-excludable rights. Review whether indemnities and limitation wording are appropriate and enforceable for the actual customer and service; the preparer does not certify that they are.

Record: Reviewer name/qualification [Placeholder] (COMPLETE); reviewed exact versions/hashes [Placeholder] (COMPLETE); findings and resolution [Placeholder] (COMPLETE); scope of advice [Placeholder] (COMPLETE); owner decision/date [Placeholder] (COMPLETE). Review supplier/contractor terms separately before appointing anyone; this pack only contains a client CSA and mutual NDA.

## G7 Document release and operator readiness

Decision requested: Approve the exact reconciled masters after G1-G6 as relevant, and the SOP responsibilities/processes used to administer them. Affected users include Sales, Delivery, Finance, Company/Privacy and Marketing/website maintenance where notices or enquiry processes change. No folder owner is assigned by this worksheet.

Record: Legal reviewer [Placeholder] (COMPLETE); affected-person review references [Placeholder] (COMPLETE); owner approval [Placeholder] (COMPLETE); approved master version [Placeholder] (COMPLETE); effective date [Placeholder] (COMPLETE); native/PDF/ZIP hashes [Placeholder] (COMPLETE); issue custodian [Placeholder] (COMPLETE); restricted signed-record destination [Placeholder] (COMPLETE); rehearsal record [Placeholder] (COMPLETE).

Release rule: A complete Word/PDF build closes preparation only. Remove review banners and regenerate a distinct approved issue package only after recorded approval. The v1 native pack and all v1 ZIP copies remain historical drafts. Do not overwrite or amend a signed copy; issue a reviewed amendment or new agreement where required.

## Approval scope selection

The owner and reviewer must identify which documents and uses are approved. Website approval is already recorded separately. Do not assume that approval of one row activates the others.

- NDA only: identity, notice/signing method, NDA periods/terms and the relevant legal/owner review must be completed; exchange only information approved for that preliminary purpose. This does not activate paid services or project data.
- Paid Diagnostics: CSA, completed Diagnostics order, commercial/insurance/data/IP/acceptance gates and any activated schedules approved before signature/start.
- Workflow Transformation: CSA, completed SOW, current delivery commitments, system/data/insurance/commercial/IP controls, testing, handover and defect process approved.
- AI Guardrails: CSA, completed SOW and governance deliverables/effort approved. Any actual AI use additionally requires form B and relevant data controls.
- Project privacy notice and forms: tailored to actual data flows and reviewed before the controlled event. The project policy cannot be published as a replacement for the existing website policy without separate approval.

Decision [Placeholder] (APPROVED FOR SPECIFIED USE / RETURN FOR CHANGES / HOLD)

Exact files and versions [Placeholder] (COMPLETE)

Permitted uses and excluded activities [Placeholder] (COMPLETE)

Unresolved conditions [Placeholder] (COMPLETE)

Legal reviewer and evidence reference [Placeholder] (COMPLETE)

Owner and authority reference [Placeholder] (COMPLETE)

## Legal and source checks

Primary public guidance checked on 13 September 2026 for drafting and issue-spotting. These sources inform the proposed clauses/SOPs; they do not determine Heutrix's legal status or replace Australian legal advice. Verify applicable law and guidance again when the actual operating model is settled.

- ACCC contracts guidance: <https://www.accc.gov.au/business/selling-products-and-services/contracts> . Standard-form small-business protections may apply where a party has fewer than 100 employees or annual turnover below AUD 10 million. Review automatic acceptance, termination, indemnities and unilateral rights. A contract may arise through conduct or communications even without a written instrument; the SOP must prevent premature commitments, not merely rely on a signature disclaimer.
- ACCC consumer rights and guarantees: <https://www.accc.gov.au/consumers/buying-products-and-services/consumer-rights-and-guarantees> . Check whether consumer guarantees apply to the transaction and preserve non-excludable rights. A business customer is not automatically outside those protections.
- OAIC small-business guidance: <https://www.oaic.gov.au/privacy/privacy-guidance-for-organisations-and-government-agencies/organisations/small-business> . Turnover is not the only test; exceptions and specific obligations may apply. Serving a health/disability provider does not alone establish that Heutrix is itself a health service provider. Obtain an applicability assessment based on actual handling and relationships.
- Victorian Health Records Act guidance: <https://www.health.vic.gov.au/legislation/health-records-act> . Health-information handling in Victoria can attract Health Privacy Principles regardless of business size. Assess jurisdiction and exemptions; do not assume the federal small-business position resolves state obligations.
- OAIC NDB guidance: <https://www.oaic.gov.au/privacy/notifiable-data-breaches/preventing-preparing-for-and-responding-to-data-breaches/data-breach-preparation-and-response/part-4-notifiable-data-breach-ndb-scheme> . Assess applicability, suspicion/belief thresholds, serious harm, effective remedial action, assessment timing and notification as soon as practicable where required. The 30-calendar-day assessment rule is not a general permission to wait before notifying.
- ACMA spam guidance: <https://www.acma.gov.au/avoid-sending-spam> . Establish consent, identify the sender and provide unsubscribe. Honour requests within five working days and keep the unsubscribe available for at least 30 days. Consent evidence and suppression handling need an approved operating location.

Internal authority: company registration record dated 8 September; legal review register; decisions/verified-facts and launch records; offer validation register and flagship specification; approved-systems register; pricing policy; delivery standards; website PR 16 at <https://github.com/Heutrix/heutrix-website/pull/16> . Official ABR live retrieval did not succeed in this preparation; the verified saved 8 September evidence is the identity source, not a claimed fresh registry check.